

The U.P. Milk and Milk Products Regulation Order, 1987

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State of Uttar Pradesh - Act

The U.P. Milk and Milk Products Regulation Order, 1987

UTTAR PRADESH

India

The U.P. Milk and Milk Products Regulation Order, 1987

Rule THE-U-P-MILK-AND-MILK-PRODUCTS-REGULATION-ORDER-1987 of 1987

Published on 20 May 1987

Commenced on 20 May 1987

[This is the version of this document from 20 May 1987.]

[Note: The original publication document is not available and this content could not be verified.]

The U.P. Milk and Milk Products Regulation Order, 1987

Published vide Notification No. 1186/12-Du-6-13-87, dated 20th May, 1987

1.

Short title, extent and commencement.

(1)

This Order may be called the Uttar Pradesh Milk and Milk Products Regulation Order, 1987.

(2)

It extends to the following regions:

Region

(1)

Districts Muzaffarnagar and Saharanpur.

Region

(2)

Lucknow, Bara Banki, Rae Bareli, Hardoi, Sitapur, Sultanpur.

Kanpur Dehat, Kanpur Nagar, Etawah, Fatehpur, Unnao. Pratapgarh, Allahabad and Jalaun districts.

Region

(3)

Agra, Aligarh and Etah districts

Region

(4)

Meerut, Ghaziabad, Bulands,hahr, Moradabad, Rampur, Bareilly and Budaun districts.

Region

(5)

Ghazipur, Mirzapur, Ballia, Jaunpur and Varanasi districts.

Region

(6)

Districts Basti and Gonda.

(3)

This order shall come into force with effect from May 20, 1987, and shall remain in force till July 31, 1987 unless withdrawn earlier.

2.

Prohibition of manufacture, sale supply and export of milk and milk products.

(1)

No person-in the limit of municipal corporations and municipalities of regions 1 to 6 specified in sub-clause (2) of Clause 1 of this Order, and

(2)

No dairy licence under Section 11 of the Uttar Pradesh Milk Act, 1976 (Act No. 7 of 1976

), in the limits of the districts of the regions specified in sub-clause (2) of Clause 1 of this Order shall,-

(a)

use milk of any kind for the manufacture of any milk product for commercial purposes, or

(b)

sell or supply or cause to be sold or supplied any milk product for commercial purposes, or

(c)

export or attempt to export or abet the export of milk and milk product of any kind from anyone region specified in sub-clause (2) of Clause 1 of this order to any place outside the boundaries of that region, except in accordance with a permit issued by the State Government or any officer authorised in this behalf by the State Government:

Provided that nothing in this clause shall apply,-

(i)

to the use of milk for manufacture of and to the sale or supply of separated or skimmed milk by the persons engaged in public distribution thereof, or

(ii)

to the use of milk for manufacture of and to the sale, supply or export of-

(a)

Ghee from butter or from the cream derived in preparation of such separated or skimmed milk, or

(b)

Dahi, or

(c)

Ice-cream, Kulfi or kulfa in the preparation of which no Khoa; rubree or cream is used, or

(iii)

to the use of milk for the manufacture of and to the sale, supply or export of infant milk food or any bye-product like cream (including the derivatives such as butter or ghee) produced in the process of manufacture of such infant milk food, or

(iv)

to the use of milk for the manufacture of and to the sale, supply or export of cream, butter cheese (paneer) or ghee by dairies engaged in the pasteurisation, sterilization and standardisation of liquid milk for public distribution in the State, or

(v)

to the manufacture, sale, or supply of Khoa or any product manufactured from it, in the following areas of the districts of the regions specified in sub-clause (2) of Clause 1 of this Order:-

"Municipal limit of Hardwar of district Saharanpur, Municipal limit of Misrikh of district Sitapur, Municipal limit of Budaun of district Budaun, Municipal Corporation limit of Allahabad of district Allahabad, Municipal Corporation limit of Varanasi of district Varanasi, Vindhayachal Ward, Municipal Board, Mirzapur of district Mirzapur, or

(vi)

to the export of liquid milk to the Union Territory of Delhi for consumption in Delhi, or

(vii)

to the export of milk not exceeding 10 kilograms in weight at one time by a bona fide traveller for personal consumption:

Provided further that the District Magistrate may, on being satisfied, issue permit to any dairy located within his jurisdiction for the manufacture, sale, supply or export of such milk products to such extent as are supplied to the defence forces including by products and derivatives produced in the process of manufacture of such product:

Provided further that the Milk Commissioner, Uttar Pradesh shall after due verification issue permit to any person to sell, supply or export milk products manufactured before commencement of this order.

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